

CONFIDENTIAL DISCLOSURE AGREEMENT

In order to define obligations and waivers related to certain disclosed information, Hewlett Packard Enterprise ('HPE') and the Participant identified below agree to the following:

1. **Agreement Coordinator.** Each party designates the following person, if any, as its Agreement Coordinator for coordinating the disclosure or receipt of Disclosed Information:

HPE (Hewlett Packard Enterprise Globalsoft Private Limited) and -

Employee ID - _____, employee
of _____;
engaged with HPE as a contractor

2. **HPE Confidential Information.**

(a) Confidential Information, if any, disclosed by HPE is described as

All information pertaining to the information exchanged under this Agreement which includes information relating to Employee Data limited to employee Id, email, manager name, cost location codes and organization information pertaining to Resource Management tracking and reporting that may only be used for the purpose of fulfilling obligations or exercising rights under this Agreement, and shared with the Participant and its employees, with a need to know such information to support that purpose. Confidential information will be protected using a reasonable degree of care to prevent unauthorized use or disclosure for such period as the information remains confidential.

(be specific; write "none" or leave blank if nothing is to be disclosed).

(b) Confidential Information disclosed by HPE may be used by the Participant and its Associates, if any, only for the following purpose and subject to the Section 6 obligations:

Employee Data Limited to Resource Management, organization information, Cost Codes

3. **Participant Confidential Information.**

(a) Confidential Information, if any, disclosed by Participant is described as Employee Id, email, manager name, cost location codes and organization information pertaining to Resource Management tracking and reporting (be specific; write "none" or leave blank if nothing is to be disclosed).

(b) Confidential Information disclosed by Participant may be used by HPE and its Associates, if any, only for the following purpose and subject to the Section 6 obligations:

NA.

4. **Disclosure and Protection Periods.**

(a) The **Begin Disclosure Date** is the date of the last signature of this Agreement.

(b) The **Disclosure Period** ends on the following date or at the end of the following time period: 3 Years.

(c) The **Protection Period** ends on the following date or at the end of the following time period for all Confidential Information: three (3) years from the date of signing this document.

5. **Definitions.**

(a) A **Discloser** is a party disclosing information. A **Recipient** is a party receiving disclosed information. An **Associate** is a parent, a subsidiary or corporate affiliate of Recipient whether directly or indirectly owned, or a third party contractually bound to Recipient in accord with this Agreement.

(b) **Disclosed Information** is all information disclosed by the Discloser to the Recipient during the Disclosure Period.

(c) **Confidential Information** is only Disclosed Information that is:

(i) itemized in Section 2(a) or 3(a), or

(ii) both described generally in Section 2(a) or 3(a) and

1) marked at the time of disclosure to show its confidential nature, or

2) unmarked (for example, orally or visually disclosed) but treated as confidential at the time of disclosure, and described in detail and designated to show its confidential nature in a written message sent to Recipient's Agreement Coordinator within thirty days after disclosure;

except that Confidential Information does not include information that satisfies an Exception before disclosure. Confidential Information is only Confidential Information from the time of disclosure until the earlier of the time when an Exception is satisfied or the Protection Period ends.

(d) **Non-Confidential Information** is all Disclosed Information that is not Confidential Information. If specific Confidential Information satisfies an Exception, the specific Confidential Information becomes Non-Confidential Information from that time forward.

(e) An **Exception** is satisfied if the specific information: (i) was in Recipient's possession prior to receipt from Discloser (ii) is publicly known or readily ascertainable by proper means, (iii) is rightfully received by Recipient from a third party without a duty of confidentiality, (iv) is disclosed by Discloser to a third party without a duty of confidentiality on the third party, (v) is independently developed or learned by Recipient, or (vi) is disclosed by Recipient with Discloser's prior written approval.

6. **Obligations.**

(a) During the Protection Period only, Recipient will protect and ensure its participating Associates will protect the Confidential Information by using the same degree of care, but no less than a reasonable degree of care, to prevent the unauthorized use, dissemination or publication of the Confidential Information as Recipient uses to protect its own confidential information of a like nature. Recipient may reassign its employees. Recipient will provide reasonable prior notice to Discloser and will request a protective order if Recipient is required to reveal the Confidential Information under a subpoena, court order or other operation of law.

(b) Recipient will comply with all applicable export laws.

(c) At the end of the Protection Period, Recipient's obligations end.

7. **Non-Confidential Information; Waivers.**

(a) Non-Confidential Information is not subject to confidentiality or trade secret obligations, and may be published, disclosed or used for any purpose, except that no license under any patent, trademark, mask work or copyright is granted.

(b) Discloser waives all claims or portions of claims that assert the confidentiality of, limitation of use of, breach of duty of care with respect to, or breach of this Agreement with respect to, Non-Confidential Information arising at any time or with respect to Confidential Information arising or continuing respectively after the end of the Protection Period.

8. **Choice of Law.** Without regard to conflict of law provisions, this Agreement is governed by and will be construed in accordance with the laws of Republic of India. All disputes arising out of this Agreement will be settled in the Courts of Bangalore, Karnataka.

9. **Warranty.** Each Discloser warrants that it has the right to make the disclosures under this Agreement. Each Recipient warrants that its participating Associates will protect Confidential Information in accordance with the terms of this Agreement. **THE PARTIES MAKE NO OTHER WARRANTIES. ANY DISCLOSED INFORMATION IS PROVIDED "AS IS."**

10. **Miscellaneous.** Neither party acquires any patent, copyright, mask work or trademark rights under this Agreement, including under Sections 2 or 3. This Agreement imposes no obligation on either party to purchase, sell, license, transfer or otherwise dispose of any technology, services or products; does not create any agency or partnership relationship; may be added to or modified only in a writing signed by both parties; is the parties' complete and final agreement; supersedes all oral or implied agreements concerning the Disclosed Information; and may be signed in duplicate originals, or in separate counterparts, which are effective as if the parties signed a single original. A facsimile of an original signature transmitted to the other party is effective as if the original was sent to the other party.

PARTICIPANT

HPE
Hewlett Packard Enterprise Globalsoft Private Limited.

By _____

(Date)
(Company Name)

(Address)

By _____
(Authorized Signature)
(Date)
(Name)
(Title)

(Name)

(Title) (Entity)